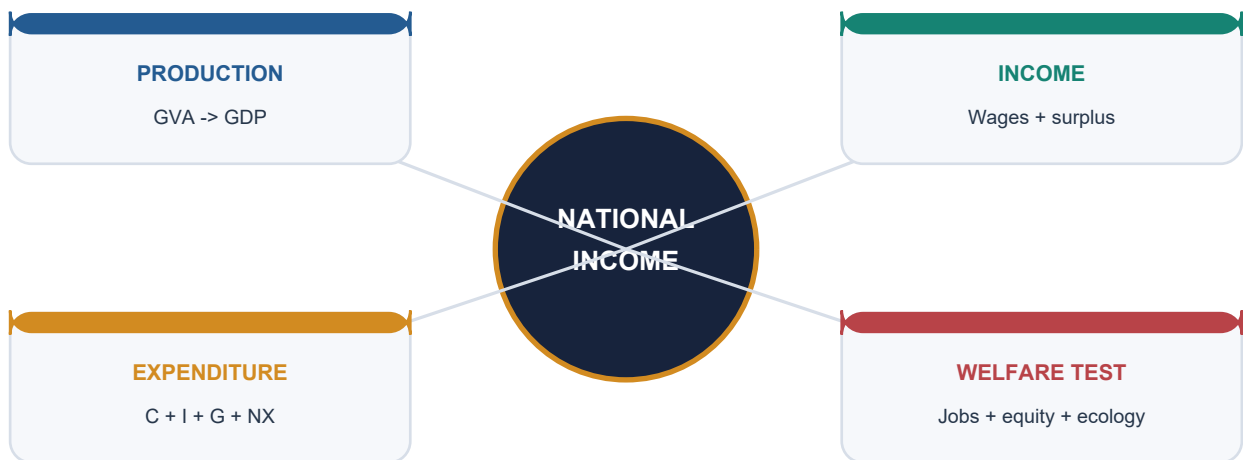


Comparative Constitutional Schemes - CORE / EXAM-COMPLETE

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Comparative Constitutional Schemes - CORE / EXAM-COMPLETE

Subject: Polity · **Tier:** Core · **GS Paper:** GS-II **Official clause:** "Comparison of the Indian constitutional scheme with that of other countries." **Rule:** This file contains every comparison needed for examination performance. The Advanced companion adds theory and evaluation, but is not required to answer a PYQ. **Advanced (optional):** ../advanced/47_Comparative-Constitutional-Design.md - optional deeper detail; not required for any mark.

1. What UPSC means by "constitutional scheme"

A constitutional scheme is not a list of borrowed provisions. It is the connected design through which a country:

1. locates sovereignty and constitutional supremacy;
2. structures the executive-legislature relationship;
3. divides territorial power;
4. protects rights and regulates religion;
5. appoints and empowers courts;
6. amends the Constitution and handles emergencies; and
7. converts votes into representation and public accountability.

Core method: compare the same institution across countries in the sequence **context -> similarity -> difference -> constitutional consequence**.

Context warning

The same institution can operate differently because of party systems, conventions, federal structure, political history and judicial doctrine. India borrowed mechanisms but adapted them to a written, republican, federal and socially transformative Constitution. **Source is not operational identity.**

2. Master constitutional map

Country	Constitutional form	Executive model	Territorial form	Constitutional control
India	Written, supreme Constitution; republic	Parliamentary; nominal President and responsible Council of Ministers	Holding-together federation with a strong Union	Supreme Court/High Courts; judicial review plus basic structure
United Kingdom	Uncodified , evolutionary constitution; constitutional monarchy	Westminster parliamentary government	Legally unitary with political devolution	Parliamentary sovereignty; courts generally cannot invalidate an Act of Parliament
United States	Written, rigid, supreme Constitution; republic	Presidential; separately elected fixed executive	Coming-together federation	Diffuse judicial review; federal and state court systems
Canada	Written federal constitution plus conventions; constitutional monarchy	Responsible parliamentary government	Federation designed with a comparatively strong centre	Supreme Court and constitutional review
Australia	Written federal constitution; constitutional monarchy	Federal Westminster system	Coming-together federation	High Court; constitutionally divided powers
France	Written Constitution of the Fifth Republic; republic	Semi-presidential: President plus Prime Minister	Unitary, decentralised state	Constitutional Council and other courts within a specialised system
Switzerland	Written federal constitution; republic	Plural Federal Council; collegial executive	Confederation by name, federation in law	Strong direct democracy; limited review of federal statutes
South Africa	Written, supreme and transformative Constitution; republic	Parliamentary executive; President elected by National Assembly	Unitary state with constitutionally protected provinces and cooperative government	Constitutional Court; enforceable civil-political and socio-economic rights
Germany	Written Basic Law; parliamentary federal republic	Chancellor-led parliamentary government	Federation with direct Land-government participation through Bundesrat	Separate Federal Constitutional Court; textual eternity clause
Japan	Written, supreme Constitution; constitutional monarchy	Parliamentary cabinet; symbolic Emperor	Unitary state	Supreme Court judicial review; rigid amendment plus referendum

3. Parliamentary, presidential and semi-presidential government

Test	India / UK parliamentary model	US presidential model	French semi-presidential model
Executive	Dual: nominal head plus real cabinet	Single President is head of state and government	Dual: President plus Prime Minister
Selection	Government emerges from legislature	President chosen separately through electoral college	President directly elected; PM appointed by President
Legislative confidence	Cabinet survives only with lower-house confidence	Executive does not depend on congressional confidence	PM/government responsible to National Assembly
Tenure	Politically variable; lower house can be dissolved	Fixed presidential and congressional terms	President fixed term; Assembly can be dissolved under constitutional conditions
Power relationship	Fusion with responsibility	Separation with checks and balances	Power balance varies with legislative majority
Central trade-off	Accountability, representation and replaceability	Stability and decisional independence	Flexible dual legitimacy but possible executive rivalry

India versus the United Kingdom

Dimension	India	United Kingdom	Consequence
Head of state	Elected President; republic	Hereditary monarch	India rejects hereditary public office
Constitutional authority	Written supreme Constitution	Uncodified constitution; parliamentary sovereignty	Indian Parliament is legally limited and reviewable
Federalism	Constitutionally divided Union-state powers	Legally unitary despite devolution	UK devolved bodies do not possess Indian-style coordinate constitutional sovereignty
Prime Minister	May belong to either House, subject to parliamentary membership rules	By convention from House of Commons	British democratic responsibility is tied more tightly to Commons leadership
Rights	Entrenched Fundamental Rights	Statute, common law and convention, including Human Rights Act framework	Indian courts can invalidate inconsistent legislation
Courts	Strong-form review of legislation	Courts interpret and review executive action but ordinarily cannot strike down primary Westminster legislation	Different meaning of "judicial supremacy"

Trap: The UK Constitution is better called **uncodified**, not literally unwritten. Statutes, judgments, conventions and authoritative works are among its sources.

India versus the United States

Dimension	India	United States
Executive	Parliamentary; President normally acts on ministerial advice	Presidential; President personally exercises executive authority
Responsibility	Council of Ministers collectively responsible to Lok Sabha	President and secretaries not collectively responsible to Congress
Legislature membership	Ministers are or become legislators	Executive officers cannot simultaneously sit in Congress
Dissolution	Lok Sabha may be dissolved	President cannot dissolve Congress
Removal	Government may fall through loss of confidence; President by impeachment	President removable only through impeachment and conviction
Party-government relation	Party majority often joins executive and legislature	Institutional separation persists even under unified party control

France and cohabitation

France combines a directly elected President with a Prime Minister responsible to the National Assembly. When President and Assembly majority align, the President is usually dominant. During **cohabitation**, the Prime Minister and parliamentary majority gain greater control over domestic government. Thus "semi-presidential" does not mean a permanently equal dual executive.

Stability lessons from Germany and Switzerland

- Germany's Bundestag may remove a Chancellor only by electing a successor: the ****constructive vote of no confidence****. It combines responsibility with continuity.
- Switzerland's seven-member Federal Council is a collegial executive. Its annually rotating President is not equivalent to a powerful presidential executive.

4. Constitutional supremacy, parliamentary sovereignty and judicial power

Model	Core principle	Legislative limit
India	Constitutional supremacy with limited constituent power	Courts may invalidate ordinary law and amendments violating the basic structure
UK	Parliamentary sovereignty	Courts ordinarily cannot invalidate a Westminster Act; a declaration of incompatibility under the Human Rights Act does not itself nullify the Act
USA	Constitutional supremacy	Courts may invalidate federal/state law; amendment is governed by Article V
Germany	Basic Law supremacy	Constitutional Court review plus textual protection under Article 79(3)
South Africa	Express constitutional supremacy	Invalid law or conduct must be controlled through constitutional adjudication

India's synthesis

India is neither:

- **British-sovereign**, because Parliament is limited by the Constitution, federal division, Fundamental Rights and judicial review; nor
- an example of unlimited **judicial supremacy**, because courts also derive authority from the Constitution and cannot rewrite policy merely because another choice appears preferable.

Parliament exercises **constituent power**, but *Kesavananda Bharati* makes it limited by the basic structure. Germany reaches a comparable protective objective through an express **eternity clause**; India's limit is judicially developed.

5. Federal design and upper houses

Dimension	India	USA	Canada	Australia	Germany	Switzerland
Formation tendency	Holding together	Coming together	Holding together/ strong-centre design	Coming together	Federal reconstruction	Coming together
Residuary power	Union	States/people under Tenth Amendment	Federal Parliament	States	Länder unless assigned	Cantons unless assigned
State equality in upper house	No; representation varies broadly by population	Yes; two Senators per state	No equal provincial representation; Senate is appointed	Yes; equal state representation in Senate	Länder governments represented with weighted votes	Equal cantonal representation, with reduced representation for former half-cantons
Judiciary	Integrated	Federal and state systems	Federal-provincia l structure with Supreme Court at apex	Federal and state systems	Ordinary courts plus specialised Constitutional Court	Federal and cantonal systems
State alteration	Parliament can alter state areas/boundaries under Constitution	States are constitutionally indestructible without required consent	Provinces constitutionally protected	States constitutionally protected	Länder participate through Bundesrat	Cantonal autonomy strongly protected

Indian distinctiveness

India combines federal division with:

- Union residuary power;
- single citizenship;
- an integrated judiciary;
- unequal Rajya Sabha representation;
- emergency centralisation;
- centrally appointed Governors; and
- Parliament's power to alter state boundaries.

Therefore, calling India simply "federal like the USA" misses the design. It is a federation adapted to unity, diversity and post-Partition state-building.

Rajya Sabha is not the US Senate

- US states receive equal Senate representation; Indian states do not.
- Rajya Sabha members are generally elected indirectly by state legislators; US Senators are directly elected.
- The US Senate has distinctive confirmation and treaty roles; Rajya Sabha has special Indian federal powers under Articles 249 and 312.

Bundesrat lesson

Germany's Bundesrat represents **Land governments**, not an independently elected second chamber. It therefore inserts state executives directly into federal legislation. Rajya Sabha represents states constitutionally, but its members do not vote as instructed delegations of state governments.

6. Rights, secularism and transformative constitutionalism

India and the United States: secularism

Dimension	India	United States
Textual basis	Preamble, equality provisions and Articles 25-28	First Amendment: Establishment and Free Exercise Clauses
General orientation	Equal citizenship, religious freedom and principled state engagement	Non-establishment plus protection of free exercise
State intervention	May regulate secular activities, pursue social reform and protect equal access	Government may regulate under neutral constitutional rules but cannot establish religion
Institutional metaphor	Principled distance/equal concern, not complete separation	"Wall of separation" is influential but not absolute constitutional isolation
Shared core	No theocratic state, religious liberty, equality and limits on coercive state preference	Same

Trap: Indian secularism is not permission for arbitrary state interference, and US secularism is not a perfectly sealed wall. In both systems the result depends on rights, equality and doctrine.

India and France: principled engagement versus laicite

Dimension	India	France
Historical concern	Managing deep religious diversity while reforming hierarchy and protecting equal citizenship	Protecting republican public authority and citizenship from clerical domination
Orientation	Principled distance: engagement, accommodation or reform depending on equality and liberty	Laicite stresses state neutrality and a religion-independent public sphere
Public expression	Constitution protects practice subject to public order, morality, health and reform/equality provisions	Regulation often places stronger emphasis on common republican rules in public institutions
Transferable lesson	Accommodation must remain bounded by equality, dignity and non-discrimination	Neutrality should not become disproportionate exclusion of individual believers

India cannot export a formula mechanically, but it demonstrates that secularism can protect common citizenship while permitting context-sensitive accommodation. France's lesson for India is the importance of state neutrality; India's lesson for France is proportionality and inclusion in a religiously diverse society.

Rights models

Country	High-yield feature
India	Justiciable Fundamental Rights plus non-justiciable DPSPs; express reasonable-restriction architecture; positive obligations developed through doctrine
USA	Bill of Rights and Fourteenth Amendment; due process and equal protection; rights applied through constitutional adjudication
South Africa	Transformative Bill of Rights expressly includes enforceable socio-economic rights subject to constitutional standards
UK	Rights protected through statutes, common law and conventions; parliamentary sovereignty remains central
Japan	Entrenched rights and "procedure established by law"; Indian Article 21 later acquired substantive fairness through judicial interpretation

Procedure established by law versus due process

India borrowed the phrase **procedure established by law** from Japan. *Maneka Gandhi* transformed Article 21 by requiring procedure to be just, fair and reasonable, bringing Indian protection closer to substantive due-process reasoning without replacing the constitutional text.

7. Courts, judicial review and judicial appointments

Judicial systems

Dimension	India	UK	USA
Court structure	Integrated hierarchy	Unified UK jurisdictions with distinct legal systems	Dual federal and state court systems
Review of primary legislation	Yes, for constitutional validity	Westminster primary legislation ordinarily not invalidated	Yes
Constitutional court	Supreme Court has constitutional and general appellate roles	UK Supreme Court is not a supreme constitutional invalidation court over Parliament	Supreme Court has constitutional and general federal jurisdiction
Rights remedy	Strong-form constitutional remedies	Interpretation/declaration mechanisms under statutory framework	Strong-form constitutional review

India versus USA: Supreme Court appointments

Stage	India	USA
Formal appointment	President	President
Decisive selection mechanism	Collegium recommendations under the Judges Cases; executive participates in processing and may seek reconsideration	Presidential nomination plus Senate advice and consent
Public legislative hearing	No constitutionally required confirmation hearing	Senate confirmation process is public and political
Tenure	Until age 65 for Supreme Court judges	During good behaviour, effectively life tenure unless resignation, retirement, death or removal
Central value protected	Judicial independence from executive dominance	Democratic checks through separated institutions
Central risk	Opacity, weak external accountability and delay	Partisan polarisation and ideological confirmation battles

Balanced conclusion: India needs transparent, reasoned and timely appointments without restoring executive primacy; the US model supplies public accountability but also demonstrates the danger of partisan capture. The objective is **accountable independence**, not mechanical transplantation.

8. Amendment design

Country	Main route	Special protection
India	Simple majority for some provisions; special majority for Article 368 amendments; half-state ratification for specified federal provisions	Basic structure limits constituent power
UK	Ordinary parliamentary legislation can alter constitutional rules, subject to political constraints	No single entrenched amendment procedure
USA	Two-thirds proposal route plus ratification by three-fourths of states under Article V	Very high rigidity; equal Senate suffrage specially protected
Australia	Parliamentary supermajority followed by referendum with national majority and majority in a majority of states	"Double majority"
Switzerland	Mandatory referendum for constitutional amendment	Majority of voters plus majority of cantons
Germany	Two-thirds in Bundestag and Bundesrat	Article 79(3) eternity clause
Japan	Two-thirds of each Diet house plus popular referendum	Very rigid political threshold
South Africa	Differentiated legislative supermajorities; provincial participation for protected matters	Founding values receive the highest threshold

Core evaluation

- Flexibility supports democratic adaptation.
- Rigidity protects stability and federal consent.
- Referendums add popular legitimacy but can reduce complex constitutional choices to a binary vote.
- India's graded method is more flexible than the US/Australian/Japanese routes, but the basic structure supplies a substantive judicial limit.

9. Elections, representation and direct democracy

Model	Main feature	Constitutional effect
India	Parliamentary government; first-past-the-post for Lok Sabha; indirect elected President	Usually produces territorial representation and a responsible cabinet
USA	Presidential electoral college; separately elected Congress	Dual democratic mandates and institutional deadlock are possible
France	Direct presidential election plus legislative elections	President may claim a strong personal mandate; cohabitation remains possible
South Africa	Proportional representation; President elected by National Assembly	Strong party proportionality with a parliamentary executive
Switzerland	Referendums and popular initiatives alongside representative institutions	Citizens participate directly in constitutional and policy veto/agenda setting

India and France: presidential elections

Dimension	India	France
Role	Normally nominal constitutional head	Powerful head within a semi-presidential system
Electorate	Electoral college of elected MPs and elected state/eligible UT assembly members	Direct popular election
Voting design	Proportional representation by single transferable vote; weighted votes	Two-round majority system if no first-round majority
Political logic	Federal balance and parliamentary executive	Independent nationwide presidential mandate

The election method follows office design: India's indirect method suits a nominal federal head; France's direct method legitimises a politically active President.

10. Heads of state and pardon power

India versus USA: presidential pardon

Dimension	India: Article 72	USA: Article II
Office context	Nominal President in parliamentary government	Real executive President
Advice	Exercised on binding ministerial advice	Personal constitutional executive power
Subject scope	Union-law offences, court-martial cases and death sentences	Federal offences against the United States
Express/external limits	Constitutional scope; cannot replace judicial process arbitrarily; limited judicial review for mala fides, arbitrariness and relevant defects	Does not reach state offences; exception for impeachment; applies only after conduct constituting an offence has occurred
Pre-emptive pardon	Indian analysis remains tied to Article 72, advice and review; do not import the US doctrine automatically	May cover completed conduct before charge or conviction; cannot pardon future conduct

Trap: A US pre-emptive pardon is not a pardon for a future crime. It operates after the conduct has occurred even if prosecution has not begun.

11. Emergency design and constitutional safeguards

Country	Design lesson
India	National, state and financial emergencies permit major centralisation; post-44th Amendment safeguards constrain repetition of 1975-77 abuse
USA	No Indian-style single constitutional emergency code; emergency authority is dispersed across Constitution and statutes and remains subject to federal checks
Germany	Emergency design must be read with federal participation and the unamendable democratic-constitutional core
South Africa	A declared state of emergency is constitutionally time-bound, reviewable and rights-limited

Comparative use should identify the safeguard, not merely announce that another country has or lacks an "Emergency." Compare declaration, duration, legislative control, judicial review, federal effect and rights derogation.

12. Borrowed provision versus adapted design

Indian feature	Often-linked source	Indian adaptation
Parliamentary government	UK	Written Constitution, republican head, judicial review and federalism
Fundamental Rights and judicial review	USA	Express restrictions, writs, DPSP interaction and basic structure
Strong-centre federation/residuary power	Canada	Union of constitutionally organised states plus asymmetric devices
Concurrent List/joint sitting	Australia	Different upper-house representation and amendment system
DPSPs	Ireland	Indian social-revolution programme; non-justiciable but fundamental in governance
Amendment elements	South Africa	Three Indian amendment routes plus basic-structure limitation
Procedure established by law	Japan	Expanded by Indian due-process-like fairness doctrine
Fundamental Duties	former USSR	Non-justiciable civic duties in Part IVA

Prelims rule: Learn the source. **Mains rule:** Explain how India changed the source to fit its own constitutional objectives.

13. Direct PYQ answer engines

13.1 2018 GS-II: basic tenets of Indian and US political systems

Thesis: Both are constitutional, democratic, republican and federal systems with judicial review, but India combines parliamentary responsibility and a strong-centre federation while the USA uses presidential separation and coordinate-state federalism.

Body order:

1. shared constitutionalism, rights, bicameralism, federalism and courts;
2. parliamentary versus presidential executive;
3. fusion versus separation;
4. federal asymmetry: residuary power, citizenship, courts, Senate/Rajya Sabha;
5. rights and amendment differences;
6. consequence: Indian accountability/flexibility versus US stability/checks.

13.2 2019 GS-II: what France can learn from Indian secularism

Define the different histories of Indian secularism and French laïcité. Explain India's principled distance, accommodation and reform; identify equality and public-order limits; suggest proportionality, non-discrimination and protection of individual religious freedom as transferable lessons; qualify that French republican history prevents mechanical transplantation.

13.3 2020 GS-II: Indian and UK judicial systems

Thesis: Both share common-law reasoning, judicial independence and precedent, but the Indian judiciary operates under constitutional supremacy and can invalidate legislation, whereas the UK system operates within parliamentary sovereignty.

Body order: common law and precedent -> court structure -> constitutional review -> rights remedies -> judicial appointments/independence -> reasoned conclusion.

13.4 2022 GS-II: election of Presidents of India and France

Start with the different office designs. Compare electorate, direct/indirect character, voting system, federal weighting, majority logic and political mandate. Conclude that procedure follows function: nominal federal head versus active semi-presidential head.

13.5 2023 GS-II: British and Indian parliamentary practice

Because the locally held scan has a manual-verification warning on the final noun, prepare the stable comparative spine: responsible government, cabinet leadership, lower-house confidence, head of state, PM's chamber, constitutional/parliamentary supremacy, federalism, conventions, rights and judicial review. Do not reconstruct uncertain printed wording.

13.6 2024 GS-II: Indian and US secularism

Define secular constitutionalism; compare Indian principled engagement/social reform with US non-establishment and free exercise; state shared commitments to liberty and equality; avoid the "India supports all religions, USA completely separates" caricature.

13.7 2025 GS-II: pardon power

Compare office context, advice, jurisdiction, express limits, judicial review and pre-emptive pardon. Define pre-emptive pardon precisely as completed conduct pardoned before prosecution/conviction, not future conduct.

13.8 2025 GS-II: judicial appointments

Trace India's First-Second-Third Judges cases and NJAC; compare collegium with US nomination and Senate confirmation; evaluate independence, transparency, delay, accountability and politicisation; conclude with accountable independence.

14. High-yield traps

- UK Constitution is **uncodified**, not wholly unwritten.
 - Parliamentary sovereignty in the UK is not the Indian position.
 - Indian Parliament has limited constituent power; it is not an ordinary subordinate legislature.
 - Indian and US Presidents are not functional equivalents.
 - Both countries use electoral colleges, but the electorates, voting rules and office designs differ.
 - Rajya Sabha does not give equal representation to states like the US or Australian Senates.
 - Canadian and Indian strong-centre features do not make the two federations identical.
 - France is semi-presidential, and cohabitation changes the internal balance.
 - Switzerland's annually rotating President is not a US-style executive President.
 - Germany's eternity clause is textual; India's basic structure is judicially developed.
 - US judicial appointments are not made by the President alone: Senate advice and consent is required.
 - US presidential pardon does not cover state offences or impeachment and cannot pardon future acts.
 - Indian secularism is not theocracy-friendly state patronage; US secularism is not absolute isolation.
 - Borrowing identifies ancestry, not the present constitutional operation.
-

15. Universal Mains comparison template

Introduction: identify both constitutional contexts and the institution being compared.

Body matrix:

1. source of authority;
2. composition/selection;
3. power and legal limits;
4. accountability/removal;
5. rights/federal consequence;
6. actual operation and one qualification.

Conclusion: state the design trade-off and whether India should adapt a principle rather than copy an institution.

Core firewall: If Advanced is skipped, this file still closes the official clause and every verified 2018-2025 comparative PYQ identified in the local knowledge base.

16. Answer architecture (10/15/20-mark support)

Purpose: sections 1-15 already hold the facts, the master map, the trap list and per-PYQ answer engines. This layer adds the **reusable machinery** those sections do not carry in one place - a demand-type router, comparative theses, mark-scaled comparative structures, a **selectable country evidence bank with an India anchor**, the rule against shallow feature-lists, the "why a transplant behaves differently" principle, limits of comparison, verdict scaffolds and factual-risk controls. It does **not** repeat sections 1-15.

16.1 Comparative demand and directive map (route by demand-type, not by year)

Demand type	Directive signals	Answer spine
Feature comparison	"compare and contrast", "convergence and divergence", "basic tenets"	Shared frame -> similarities -> differences -> constitutional consequence of the difference
Lesson-drawing	"what can X learn from India", "transferable lessons"	Identify India's working principle -> isolate the transferable <i>principle</i> -> state the limit that blocks a mechanical transplant
Evaluation	"critically examine", "evaluate", "assess"	Design A vs design B on named axes -> trade-offs -> graded verdict tied to purpose
Transplant-critique	"borrowed but adapted", "does the foreign feature fit India"	Source -> Indian adaptation -> why behaviour differs -> fit verdict
Single-institution match	"election of Presidents", "pardon power", "judicial appointments"	Hold the function constant -> composition/selection/power/limits/review -> "procedure follows function"
Secularism/rights model	"Indian vs US/French model"	Define each model precisely -> shared commitment -> structural difference -> avoid the caricature
Source-attribution	"which features were borrowed and from where"	Name the conventionally cited source -> the Indian modification -> the consequence (attribution is ancestry, not operation; keep the borrowed-features detail in §12)

16.2 Qualified thesis options for comparative answers

- India did not copy a constitution; it synthesised one - parliamentary from the UK, rights and review from the USA, a strong-centre federation from Canada, and directive goals from Ireland - fused inside a written, rigid, transformative charter, so ancestry never equals operation.
- The comparative question is almost always won on the consequence of a difference, not the difference itself: the point is not that the UK is sovereign-Parliament and India is supreme-Constitution, but what that does to rights protection and judicial power.
- Lesson-drawing runs one way in the exam - India exports principles (principled secular engagement, PIL access, basic-structure limits) but rarely mechanisms, because founding history and party systems block mechanical transplant.
- Labels deceive: "President", "Senate", "federation" and "secular" name different functions in India, the USA, France, Germany and Switzerland, so a valid comparison must compare functions, not nouns.
- India's design choices privilege accountability and adaptability (fusion of powers, three amendment routes, judicial review) over the stability-through-separation that the US model prizes - a defensible trade-off, not a defect.
- A fair comparison matches like with like - India's constitutional text against another's text and India's working practice against another's practice; pitting an idealised foreign text against messy Indian practice (or the reverse) is the commonest distortion.
- The strongest comparative answers isolate a single operating variable - party system, federal form or judicial doctrine - and show how it makes the same borrowed design behave differently in India.

16.3 Mark-scaled comparative structures

Marks	Architecture	Country load
10	Frame -> 2-3 sharp similarity/difference pairs -> one consequence -> verdict	India + one comparator, tightly
15	Thesis -> shared constitutionalism -> 3-4 differences on named axes -> consequence + one qualification -> verdict	India + 1 (occasionally 2) comparators
20	Thesis -> design frame -> executive/federal/rights/review axes -> transplant-adaptation point -> trade-off -> graded verdict	India + 1-2 primary comparators, others as one-line reinforcements

MEMORY: **Depth over breadth:** a 15-marker comparing India and *one* country well beats a shallow tour of five. Add a third country only as a **one-line** reinforcement.

16.4 The no-shallow-feature-list rule (non-negotiable)

- ANALYSIS: A feature list ("UK is uncoded, US is written, India is written...") is **not** an answer. Every compared feature must run to its **constitutional consequence** - what the difference *does* to rights, accountability, federal balance or stability.
- ANALYSIS: Compare the **same function** across systems (how each *selects judges, limits the executive, protects rights*), never an Indian court against a foreign legislature because both sit in the same chapter.
- ANALYSIS: Name the **operating variable** (party system, convention, federal form, judicial doctrine) that makes the same design behave differently - this is where marks are earned.
- ANALYSIS: **End every comparison at India:** a passage on a foreign system that never returns to the Indian consequence earns description marks, not analysis marks.

16.5 Country-by-country selectable evidence bank (with India anchor)

Use one comparator well. "Sourcing depth" flags how richly this repository actually supports each country, so you deploy the strong ones and keep the thin ones to a single line.

Country	Design feature this repo sources	India anchor / contrast (the consequence)	Sourcing depth here
FACT: United Kingdom	Uncodified constitution; parliamentary sovereignty (courts cannot strike down an Act); Westminster responsible government; Human Rights Act = weak-form/dialogic review	India took the cabinet model but placed it under a written, supreme, justiciable Constitution with judicial review + basic structure - so rights bind Parliament here, unlike Westminster	Rich (exec, judiciary, sovereignty)
FACT: United States	Written, rigid, supreme Constitution; presidential separation of powers ; coming-together federalism, residuary powers to States ; Senate advice-and-consent on judges; pardon excludes State offences/impeachment/future acts; non-establishment + free exercise secularism; due process	India fused executive and legislature, kept residuary with the Centre , borrowed rights/review but with express restrictions, writs and "procedure established by law" - accountability over separation	Rich (exec, federalism, rights, courts, pardon)
FACT: Canada	Holding-together, strong-centre federation; residuary power with the centre	The chief source of India's strong Union + residuary to the Centre ; India adds single citizenship and asymmetric devices	Moderate (federal design)
FACT: Australia	Coming-together federation; Concurrent List and joint-sitting mechanism; equal-State Senate	India adopted the Concurrent List and joint sitting but with a population-weighted, indirectly elected Rajya Sabha and its own amendment routes	Moderate (federal mechanics)
FACT: France	Semi-presidential Fifth Republic; President + PM dual executive; cohabitation ; laïcité ; directly elected President; Constitutional Council	India's President is a nominal, indirectly elected head (not semi-presidential); Indian secularism is principled engagement , not strict laïcité	Rich (executive, secularism, presidential election)
FACT: Germany	Basic Law; Chancellor-led federal republic; Bundesrat = Land-government delegation (shared rule); textual eternity clause (Art 79(3)) ; concentrated Federal Constitutional Court	India's basic structure is judicially developed , not a textual eternity clause; Rajya Sabha ≠ Bundesrat (no Land-government delegation)	Moderate (amendment, upper house)
FACT: South Africa	Written, supreme, transformative Constitution; Constitutional Court; textually enforceable socio-economic rights	India pursues transformation via DPSPs + expanded Article 21 + legislation , not textual socio-economic rights - enforceable text vs doctrinal development	Moderate (transformative, amendment)
FACT: Japan	Symbolic Emperor; "procedure established by law" ; rigid amendment plus referendum	India borrowed the phrase "procedure established by law" but the SC expanded it toward due-process fairness	Thin (single-point use)
FACT: Switzerland	Collegial plural Federal Council ; annually rotating President ; strong direct democracy (referendums)	India rejected a collegial executive for a single cabinet under a PM and chose representative , not direct, democracy	Thin (single-point use)

- **India anchor rule: ANALYSIS:** every comparison must end at India - the marks are for what the foreign design teaches about, or contrasts with, the Indian scheme, not for foreign description.
- **Pick-your-comparator by theme (what this repo sources best):** *executive type* -> **UK / US / France**; *federal formation & residuary* -> **US / Canada / Australia / Germany**; *upper-house model* -> **US & Australia (equal-State) / Germany (Bundesrat) / India (population-weighted)**; *judicial-review model* -> **UK (weak-form) /**

Germany (concentrated) / US (diffuse); *rights & transformation* -> US (non-establishment) / South Africa (socio-economic rights); *amendment & unamendability* -> Germany (Art 79(3)) / South Africa / Japan (rigid + referendum); *secularism* -> US / France; *direct democracy* -> Switzerland. ANALYSIS: Build the spine on the rich comparators (UK, US, France) and use the thin ones (Japan, Switzerland) only as single-line reinforcements.

16.6 Borrowing versus adaptation - why a transplant behaves differently in India

- ANALYSIS: **The reusable principle (deploy in every transplant-critique):** a borrowed feature is filtered through India's (1) **written, rigid, supreme** Constitution and **judicial review/basic structure**; (2) **party system** (one-dominant, coalition, regionalised by turns); (3) **holding-together, strong-Union federalism**; (4) **deep social cleavages and a transformative purpose**; (5) **conventions overlaid on codification**; and (6) **state-capacity/implementation** limits. The output is **adaptation, hybridisation or functional substitution - never replication**.
- MEMORY: **Answer line:** "India imported the *mechanism* but re-tuned it to a written, federal, transformative order, so the same institution performs a different constitutional job." (This is the analytical claim section 12 lists as *examples*; here it is the *rule* you apply to an unfamiliar feature.)

16.7 Criticism and limits of comparison

- ANALYSIS: **False equivalence:** shared labels ("President", "Senate", "secular", "federation") hide different functions - the commonest way a comparative answer goes wrong.
- ANALYSIS: **Source ≠ operation:** identifying ancestry (UK, US, Canada...) explains origin, not present working; over-stating borrowing flattens India's synthesis.
- ANALYSIS: **Context-stripping:** transplanting a foreign fix without its founding conditions, party system and capacity ignores why it worked *there*.
- ANALYSIS: **Selective idealisation:** comparing India's real practice with a foreign system's textbook ideal (or vice-versa) is not a fair comparison - compare like with like (text with text, practice with practice).
- ANALYSIS: **Convergence illusion:** shared constitutionalism (courts, rights, elections) is easily over-read as similarity; the marks lie in the **structural divergence** beneath the shared vocabulary.

16.8 Verdict scaffolds for comparative demands

- **Feature-comparison verdict:** "The systems converge on constitutionalism and courts but diverge on where power is fused or separated; that single difference - fusion vs separation - cascades into their contrasting logics of accountability and stability."
- **Lesson-drawing verdict:** "What travels is the *principle* - principled secular engagement, broad rights access, a basic-structure floor - not the *mechanism*, because founding history and party incentives resist mechanical transplant."
- **Transplant-critique verdict:** "India borrowed the institution and re-purposed it; judged by fit rather than by fidelity to the source, the adaptation, not the copy, is the achievement."
- **Evaluation verdict:** "Judged by purpose rather than symmetry, India's fusion-plus-review design buys accountability and adaptability at some cost to the tidy separation the US prizes - a coherent trade-off, not an incoherence."

16.9 Objective-style distinctions (future-Prelims safety)

The generated blocks below route **only Mains GS-II** demands (2018 Q13, 2019 Q5, 2020 Q4, 2022 Q14, 2023 Q4, 2024 Q15) - **no objective/Prelims PYQ is routed here**. These discriminations guard the same facts against an unfamiliar objective question.

Confusion pair	Correct discrimination
UK "unwritten" vs "uncodified"	The UK constitution is uncodified (scattered across statutes, conventions, cases), not wholly unwritten
Parliamentary sovereignty vs constitutional supremacy	UK Parliament is sovereign; India's Constitution is supreme and Parliament's power is limited (basic structure)

Confusion pair	Correct discrimination
Residuary powers	Centre in India and Canada ; States in the USA and Australia
Rajya Sabha vs US/Australian Senate vs Bundesrat	RS = population-weighted, indirectly elected ; US/Australian Senate = equal-State ; Bundesrat = Land-government delegation - not interchangeable
Eternity clause vs basic structure	Germany's Art 79(3) is textual ; India's basic structure is judicially developed
Indian vs French secularism	India = principled engagement/accommodation ; France = laïcité (strict separation)
US judicial appointment	President nominates with Senate advice and consent - not the President alone
US pardon limits	No State offences, no impeachment, no future acts
Swiss President	Annually rotating head of a collegial Council - not a US-style executive President
"Procedure established by law"	Borrowed from Japan ; India is not the US "due process" wording (though later expanded by fairness doctrine)
Judicial-review strength	UK (Human Rights Act) issues a declaration of incompatibility (weak-form; Parliament stays supreme); India and the USA can strike down unconstitutional laws (strong-form)
Collective responsibility	A UK convention ; in India it is textual - Art 75(3) (Council collectively responsible to the Lok Sabha)
Cabinet's legal basis	India's cabinet system is constitutionally entrenched (Arts 74-75) ; the UK's rests on convention - India codified what Britain leaves unwritten
Amendment routes	India has multiple routes under Art 368 (special majority; some needing ratification by half the States; a few matters by simple majority) - not a single uniform procedure
Impeachment of the President	India (Art 61) = for " violation of the Constitution " by Parliament - do not import the US "high crimes and misdemeanours" ground
Judges' removal ground	India = " proved misbehaviour or incapacity " via parliamentary address (Art 124(4)) - not a US-style criminal impeachment

16.10 Factual-risk and current-status controls

- ANALYSIS: **Do not invent foreign constitutional text, amendment procedures, court sizes or appointment rules.** State only what sections 1-15 source; if a foreign detail (e.g., a specific term length, bench strength or referendum threshold) is not held here, **argue the design principle instead of quoting a number.**
- FACT: **US Supreme Court size is set by statute, not the Constitution** - never assert a constitutionally fixed number of Justices.
- FACT: Germany's eternity clause is **Art 79(3)**; do not attribute an identical textual clause to India.
- ANALYSIS: Keep **secularism** precise: India ≠ "supports all religions equally as State policy"; USA ≠ "absolute isolation" - avoid both caricatures (the 2019/2024 secularism demands turn on this).
- ANALYSIS: Treat **cohabitation, semi-presidentialism and direct democracy** as **design descriptions**, not events - don't narrate contested foreign political history.
- FACT: **Borrowing identifies ancestry, not present operation** - the master factual-discipline line for this whole topic.
- ANALYSIS: **Attribution is contested at the edges:** DPSPs are conventionally cited from **Ireland** (which itself drew on Spain), and emergency/rights-suspension ideas from the **Weimar/German** and **Government of India**

Act 1935 lineage - present these as **conventional attributions**, not as the Constitution's own statements (detail lives in §12).

- **FACT: India's amendment procedure is sui generis*** (multiple routes under Art 368) - never describe it as a copy of any single foreign model, and do not quote foreign amendment fractions from memory.

Recent PYQ Integration (2024-2025)

Status: 2024-2025 question-level PYQ demand is integrated into this owner. **Provenance:** Audited local official-paper routing ledgers: _PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2024-2025.md.

- **Years represented:** 2024
- **Paper(s):** GS-II
- **Routed question demands:** 1

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2024	GS-II	15	India as a secular state compared with US secular principles	Discuss · 15 marks · 250 words	Routed to owning topic	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.

What this owner must now support

- India as a secular state compared with US secular principles

This block integrates the 2024-2025 examinable demand and paper metadata. It is kept separate from the 2018-2023 block and does not convert an unkeyed/answer-free objective question into a solved answer.

Historical PYQ Integration (2018-2023)

Status: Question-level PYQ demand is integrated into this owner. **Provenance:** Audited local official-paper routing ledgers: _PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md.

- **Years represented:** 2018, 2019, 2020, 2022, 2023
- **Paper(s):** GS-II
- **Routed question demands:** 5

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2018	GS-II	13	Basic tenets of the Indian and US political systems	Examine · 15 marks · 250 words	Dedicated comparative owner plus parliamentary-system support	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.
2019	GS-II	5	What France can learn from India's approach to secularism	What can it learn · 10 marks · 150 words	Dedicated comparative owner plus constitutional-rights and society support	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.
2020	GS-II	4	Convergence and divergence of Indian and UK judicial systems	Highlight the key points · 10 marks · 150 words	Dedicated comparative owner plus judiciary support	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2022	GS-II	14	Election procedures for the Presidents of India and France	Critically examine · 15 marks · 250 words	Dedicated comparative owner plus presidential-office support	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.
2023	GS-II	4	British and Indian approaches to Parliamentary sovereignty	Compare and contrast · 10 marks · 150 words	Dedicated comparative owner plus parliamentary-system support; final noun verified against official scan	Prepare context, core dimensions, evidence/examples, counterpoint and a concise conclusion.

What this owner must now support

- Basic tenets of the Indian and US political systems
- What France can learn from India's approach to secularism
- Convergence and divergence of Indian and UK judicial systems
- Election procedures for the Presidents of India and France
- British and Indian approaches to Parliamentary sovereignty

The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.